Supreme Court, U.S.
FILED

981036 DEC 22 1998

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No.

IN THE

Supreme Court of the United States

OCTOBER TERM, 1998

THE STATE OF ILLINOIS,

Petitioner,

vs.

SAM WARDLOW,

Respondent.

On Petition for a Writ of Certiorari to the Supreme Court of Illinois

PETITION FOR A WRIT OF CERTIORARI

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38 pp

QUESTION PRESENTED FOR REVIEW

Whether a person's sudden and unprovoked flight from a clearly identifiable police officer, who is patrolling a high crime area, is sufficiently suspicious to justify a temporary investigatory stop pursuant to *Terry v. Ohio*.

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PETITION FOR A WRIT OF CERTIORARI

Petitioner, the State of Illinois, prays for a Writ of Certiorari to review the judgment and order of the Illinois Supreme Court which was entered on September 24, 1998.

OPINIONS BELOW

The opinion of the Illinois Supreme Court, which affirmed the Illinois Appellate Court's suppression of the evidence order and reversed respondent's conviction, was entered on September 24, 1998 and is reported at 183 Ill.2d 306, 701 N.E.2d 484 and reproduced in Appendix A of this Petition.

The opinion of the Illinois Appellate Court, First District, which suppressed the evidence and reversed respondent's conviction, was entered on March 18, 1997 and is reported at 287 Ill.App.3d 367, 678 N.E.2d 65 and reproduced in Appendix B of this Petition.

The order of the circuit court denying respondent's motion to suppress is unreported.

STATEMENT OF JURISDICTION

The order and judgment of the Illinois Supreme Court was entered on September 24, 1998. No Petition for Rehearing was filed. This Petition for a Writ of Certiorari is filed within 90 days of that order as required by Rule 13(1) of the rules of the Supreme Court. The decision of the Illinois Supreme Court was explicitly based on federal Constitutional law, in particular on the Fourth Amendment. Accordingly, the jurisdiction of this Court is invoked under 28 U.S.C. sec. 1257 (a).

CONSTITUTIONAL PROVISION INVOLVED

The Fourth Amendment to the United States Constitution.

The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation, and particularly describing the place to be searched, and the person or things to be seized.

STATEMENT OF THE CASE

Respondent, Sam Wardlow, was charged with two counts of Unlawful Use of Weapon by a Felon and two counts of Unlawful Use of Weapon under Indictment Number 95-CR-26952. (CL. 9-14) Respondent filed a pretrial Motion to Suppress Physical Evidence and a hearing was held on this motion on October 25, 1995. (R. A1, CL. 22)

The only witness called upon to testify at the hearing was a nine year veteran Chicago police officer, Timothy Nolan. (R. A4, A11) Officer Nolan testified that on September 9, 1995 he was assigned to the Special Operations Section of the Chicago Police Department's Eleventh District. (R. A4) On that day Officer Nolan was adorned in his full police uniform which included his badge, name tag and a Chicago Police Department patch on his arm. (R. A11) Officer Nolan stated that one of the locations in the 11th District that has "high narcotics traffic" is in the area of 4035 West Van Buren. (R. A8, A9)

Officer Nolan stated that his assignment on September 9, 1995 was to investigate narcotics sales in this area of the 11th District. (R. A9) As such, Officer Nolan and seven other officers converged on this area in four separate cars. (R. A9) As these four police cars were driving east on Van Buren Street, Officer Nolan and his partner, Officer Harvey, were in the last car. (R. A4, A9, A10) He could not recall if their police car was marked or unmarked. (R. A4-A5) Officer Nolan explained that the purpose for having four cars converge on the same location at the same time is because normally there is an enormous amount of people in such areas, some of whom are there as customers while others served as lookouts. (R. A9)

As the officers were cruising down Van Buren Street, Officer Nolan saw the respondent standing near the front of 4035 West Van Buren Street. (R. A8-A9) Respondent then looked at the officers and took off running. (R. A6, A10) Officer Nolan could see that the respondent was carrying a white opaque bag under his arm while he was running. (R. A7, A8, A10)

Officer Nolan then turned his police car southbound and saw the respondent running down a gangway. (R. A6, A10) As he kept driving, he then saw the respondent running southbound through an alley. (R. A6) Officer Nolan and his partner were eventually able to catch up to and corner the respondent in the vicinity of 4036 West Congress Street. (R. A6, A10)

Still dressed in uniform, with his badge, patch and name tag visible, Officer Nolan exited his vehicle and stopped the respondent for the purpose of conducting a field interview. (R. A7, A11) Officer Nolan stated that it

was common to find weapons in the vicinity where narcotics are sold. (R. A13) Without announcing his office or asking the respondent any questions, Officer Nolan conducted a "protective pat-down" search "for [his] own safety." (R. A7) He did this by squeezing the outside of the white opaque plastic bag that respondent was holding under his arm. (R. A7, A11) The object that Officer Nolan felt inside the bag was hard, heavy and similar in shape to a revolver. (R. A11) Officer Nolan then looked inside the bag and found a Colt .38 caliber handgun loaded with five live bullets. (R. A12) It was at that time that the officer placed the respondent under arrest. (R. A8)[1]

The parties presented their arguments to the trial judge on October 25th and December 6th of 1995. (R. A14-A18, B5-B12) After hearing the respective arguments, the trial court judge denied respondent's suppression motion. (R. B13) In denying respondent's motion, the trial judge observed that it is common knowledge that police officers know of the areas in which drugs are being sold, and do have knowledge of the general areas where contraband, including weapons, are being carried. (R. B12) The judge noted that police officers have a right to drive up to these areas. The judge also observed that anybody can identify a police car, be it marked or unmarked. (R. B13) Under all of the attendant circumstances, including respondent's awareness of the circumstances that brought about the

[1] The transcript of the Report of Proceedings does not indicate the precise time of defendant's arrest. However, Officer Nolan's Arrest Report indicates that defendant was arrested at 12:15 p.m. (CL. C4)

officers' presence in that area and his flight upon looking in their direction, the trial judge concluded that the officers had a right to stop and question respondent, and in doing so, they had a right to protect themselves by conducting a pat-down search. (R. B13) Finally, the judge noted that once a person flees, after having looked in the direction of a police officer, "there's reasons to think there's a problem [; the officers] have a right to make inquiry." (R. B14)

Following a stipulated bench trial, the respondent was found guilty of Unlawful Use of a Weapon by a Felon and sentenced to two years imprisonment.

REASONS FOR GRANTING THE WRIT

I.

THE PRESENT ISSUE HAS BEEN LEFT OPEN BY THIS COURT IN TWO PRIOR CASES.

The present case squarely presents this Court with an issue that has twice eluded it. Specifically, the issue is whether police officers, who are patrolling a high crime area, are justified in temporarily stopping a person pursuant to *Terry v. Ohio*, 392 U.S. 1 (1968), when that person, suddenly and without provocation, breaks and runs away at the mere sight of the police.

First, in *Michigan v. Chesternut*, 486 U.S. 567 (1988), this Court granted a writ of certiorari to consider the following two questions:

> "whether the officers' pursuit of respondent constituted a seizure implicating Fourth Amendment protections, and, if so, *whether the act of fleeing, by itself, was sufficient to constitute reasonable suspicion justifying that seizure*." (emphasis added) 486 U.S. at 572.

This Court answered the first question by holding that Respondent Chesternut had not been seized by the police during the pursuit. Accordingly, this Court noted that,

> "[b]ecause we conclude that the officers' conduct did not constitute a seizure, we need not reach the second question." 486 U.S. at 572.

Second, in *California v. Hodari D.*, 499 U.S. 621 (1991), the two potential issues for resolution were whether Respondent Hodari had been seized at the time he dropped the drugs and, if he had, whether Hodari's flight gave the officer sufficient reasonable suspicion to justify the seizure. 499 U.S. at 623. This Court stated that, "[a]s this case comes to us, the only issue presented is whether, at the time he dropped the drugs, Hodari had been 'seized' within the meaning of the Fourth Amendment". 499 U.S. at 623. This was so because the State of California had conceded "that Officer Petoso did not have the 'reasonable suspicion' required to justify stopping Hodari [under *Terry v. Ohio*]". 499 U.S. at 623 n1. Although Justice Scalia, writing for the majority, opined "[t]hat it would be unreasonable to stop, for brief inquiry, young men who scatter in panic upon the mere sighting of the police is not self-evident, and arguably contradicts proverbial commonsense. See Proverbs 28:1 ('The wicked flee when no man pursueth')", he noted that "[w]e do not decide that point here but rely entirely upon the State's concession." 499 U.S. at 623 n1. Consequently, it is apparent that, on two occasions and for two different reasons, the present issue has escaped this Court's scrutiny. In the instant case, however, the question surrounding respondent's sudden flight from the police in a high crime area is the only issue to be resolved. Further, the petitioner, unlike the State of California, is by no means conceding that reasonable suspicion was lacking for a temporary investigative stop. Thus, the present case will enable this Court to finally address this important issue.

II.

THE FEDERAL AND STATE COURTS THAT HAVE CONSIDERED THE PRESENT ISSUE ARE IN CONFLICT.

Two members of this Court have suggested that flight from a clearly identified police officer in a high crime area can, in and of itself, furnish sufficient ground for a limited investigatory stop. *Michigan v. Chesternut*, 486 U.S. at 576 (Justice Kennedy, concurring, joined by Justice Scalia) ("It is no bold step to conclude, as the Court does, that the evidence should have been admitted, for respondent's unprovoked flight gave the police ample cause to stop him.") *See also California v. Hodari D.*, 499 U.S. at 623 n1. However, as noted *supra*, this Court has yet to address this specific issue. *See Tom v. Voida*, 963 F.2d 952, 985 (7th Cir. 1992) (Federal Court of Appeals acknowledges that Supreme Court "has not decided whether flight alone may support a finding of reasonable suspicion.") In this Court's absence, the decisions of the several state and federal courts that have ruled on this issue have produced mixed results.

On the one hand are state court opinions which hold that flight from a police officer in a high crime area can be sufficient for an investigatory stop. Typical of these is *State v. Anderson*, 155 Wisc. 2d 77, 454 N.W.2d 763 (1990) where the Supreme Court of Wisconsin stated that:

Flight at the sight of police is undeniably suspicious behavior. Although many innocent explanations could be hypothesized as the reason for the flight, a reasonable police officer who is charged with enforcing the law as well as maintaining peace and order cannot ignore the inference that criminal activity may well be afoot. Although it does not rise to a level of probable cause, flight at the sight of a police officer certainly gives rise to a reasonable suspicion that all is not well. Under these circumstances, "[i]t would be poor police work indeed for an officer . . . to have failed to investigate further." (citing *Terry*, 392 U.S. at 23)

* * * *

Accordingly, we hold that behavior which evinces in the mind of a reasonable police officer an intent to flee from the police is sufficiently suspicious in and of itself to justify a temporary investigative stop by the police. Such flight, although not illegal, gives rise to a reasonable suspicion that some sort of wrongful activity is afoot. *Anderson*, 454 N.W.2d at 766, 768.

State cases that have ruled similarly include *Platt v. State*, 589 N.E.2d 222 (Ind. 1992); *State v. Little*, 806 P.2d 749 (Wash. 1991); *State v. Andrews*, 565 N.E.2d 1271 (Ohio 1991); *State v. Stinnett*, 104 Nev. 398, 760 P.2d 124 (1988); *State v. Williamson*, 524 A.2d 655 (Conn. App. 1987); *State v. Johnson*, 444 N.W.2d 824 (Minn. 1989); *Harris v. State*, 205 Ga. App. 813, 423 S.E.2d 723 (1992); *State v. White*, 660 So. 2d 515 (La. Ct. App. 1995); *People v. Souza*, 9 Cal. 4th 224, 885 P.2d 982 (1994); *State v. Jackson*, 147 Wis.2d 824, 434 N.W.2d 386 (1989); *State v. Butler*, 415 S.E.2d 719 (N.C. 1992).

On the other hand are state court opinions which hold that flight from the police in a high crime area is insufficient for an investigatory stop. Typical of these is the instant case where the Illinois Supreme Court, in interpreting the Fourth Amendment, held that breaking and running away from a police officer, in a high crime area, can never be alone sufficient to conduct a temporary investigative stop. The Illinois Supreme Court reasoned that, while flight in a high crime area may produce an inference of guilt, the officer must be "able to point to specific facts corroborating the inference of guilt gleaned from defendant's flight" before he can make a lawful investigatory stop. (App. 12) State cases that have similarly held include *State v. Hicks*, 241 Neb. 357, 488 N.W.2d 359 (1992); *State v. Tucker*, 136 N.J. 158, 642 A.2d 401 (1994); *People v. Shabaz*, 378 N.W.2d 451 (Mich. 1985); *State v. Talbot*, 792 P.2d 489 (Utah App. 1990); *Britt v. State*, 673 So. 2d 934 (Fla. App. 1996); *Hopkins v. State*, 661 So.2d 774 (Ala. App. 1994); *Dimascio v. Municipality of Anchorage*, 813 P.2d 696 (Alaska App. 1991); *People v. Wilson*, 784 P.2d 325 (Colo. 1989); *People v. Holmes*, 81 N.Y.2d 1056, 619 N.E.2d 396 (1993); *Watkins v. State*, 420 A2d 270 (Md. 1980).

The federal courts are also divided on this issue. Cases holding that flight can be sufficient for a temporary stop include *United States v. Cardona-Rivera*, 904 F.2d 1149 (7th Cir. 1990); *United States v. Lane*, 909 F.2d 895 (6th Cir. 1990); *United States v. Jackson*, 741 F.2d 223 (8th Cir. 1984); *United States v. Pope*, 561 F.2d 663 (6th Cir. 1977); *United States v. Vasquez*, 534 F.2d 1142 (5th Cir. 1976); *United States v. Haye*, 825 F.2d 32 (4th Cir. 1987) *United States v. Rundel*, 461

F.2d 860 (3rd Cir. 1972). Federal cases holding that flight is insufficient include *United States v. Green*, 670 F.2d 1148 (D.C. Cir. 1981) and *United States v. Williams*, 314 F.2d 795 (6th Cir. 1963).

Additionally, Professor Wayne R. LaFave has reviewed and discussed several of these conflicting cases in his treatise on search and seizure. 4 Wayne R. LaFave, SEARCH AND SEIZURE, sec. 9.4(f) at 176-182 (3rd Ed. 1996). Finally, one legal commentator has discussed the instant issue and the conflicting cases and has made various proposals to resolve this problem. *See* Harris, *Factors for Reasonable Suspicion: When Black and Poor Means Stopped and Frisked*, 69 Ind. L.J. 659, 671-675, 681 (1994).

In short, state and federal courts are in irreconcilable conflict over the instant issue. As such, given the importance and frequency of occurrence of this issue, the existing conflict warrants this Court's resolution.

III.

THE ILLINOIS SUPREME COURT'S OPINION CONCERNS AN IMPORTANT QUESTION OF FEDERAL CONSTITUTIONAL LAW WHICH SHOULD BE DECIDED BY THIS COURT TO GIVE NEEDED GUIDANCE TO LOWER COURTS AND LAW ENFORCEMENT OFFICIALS THROUGHOUT OUR NATION.

Every single day law enforcement officers at all levels throughout our country are confronted with the issue presented in the instant case: whether to chase and temporarily stop a person in a high crime area who runs away at the mere sight of the police. The present case presents this Court with the perfect vehicle to visit and resolve this important and constantly reoccurring question.

First, it is beyond question that the Illinois Supreme Court decided the present case under federal Constitutional law. (App. 3-4, 12) *See Michigan v. Chesternut*, 486 U.S. at 571 n3. Second, the factual matrix of the present case is virtually identical to that of *Michigan v. Chesternut*, *supra*, and *California v. Hodari D.*, *supra*. The only noteworthy difference is that, while Respondents Chesternut and Hodari dropped the contraband drugs while they were being pursued, Respondent Wardlow kept the contraband gun in his possession until he was stopped and patted down. (App. 1, 2, 14) Third, the type of flight from police in issue here is of the most extreme kind: running at full speed. The present case does not involve a lesser means of movement such as walking away, whether slowly or swiftly, from a police officer. Fourth, a further delay in considering this issue will only increase and polarize the present conflict among the lower courts, while adding nothing to the debate. Said otherwise, this issue is ripe for this Court's review. Fifth, lower courts are relying on the suggestion of two members of this Court, noted *supra* at 7, that flight in a high crime area is sufficient for a temporary investigative stop. *See Platt v. State*, 589 N.E.2d at 226, *State v. Anderson*, 454 N.W.2d at 767. Petitioner submits that it would be prudent for this Court to grant the present petition and determine whether or not this is also the view of the majority of this Court.

Finally, the present Illinois Supreme Court opinion essentially gives citizens the license, when they see a peace officer in a high crime area, to just break and run away. This puts the officers in the unenviable position of having to shrug their shoulders and helplessly stand watching while such persons escape. The Petitioner re-

spectfully submits that the present case presents this Court with the ideal means to address and rectify this untenable state of affairs.

CONCLUSION

For all the foregoing reasons, the Petitioner respectfully prays that this Honorable Court grant the instant petition for Writ of Certiorari to review the judgment of the Illinois Supreme Court.

Respectfully submitted,

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APPENDICES

APPENDIX A

Opinion of The Illinois Supreme Court
Docket No. 83061, Filed September 24, 1998
THE PEOPLE OF THE STATE OF ILLINOIS, Appellant, v. SAM WARDLOW, Appellee.

JUSTICE HARRISON delivered the opinion of the court:

Defendant, Sam Wardlow, was convicted of unlawful use of a weapon by a felon (720 ILCS 5/24-1.1(a) (West 1994)) following a stipulated bench trial in Cook County and was sentenced to a term of two years' imprisonment. On appeal, the appellate court reversed defendant's conviction, finding that defendant's motion to suppress evidence should have been granted because the revolver seized from him was discovered as a result of an improper investigatory stop. 287 Ill. App. 3d 367. We allowed the State's petition for leave to appeal. 166 Ill. 2d R. 315(a); 145 Ill. 2d R. 604(a)(2).

At the hearing on defendant's motion to suppress, Officer Timothy Nolan testified that on September 9, 1995, he and his partner, Officer Harvey, were assigned to the special operations section of the Chicago police department. On that date, Nolan and Harvey were among eight officers in four cars travelling eastbound on West Van Buren Street with the purpose of investigating narcotics sales in that area. Nolan stated that he was working in uniform, but did not recall whether the police car he drove, the last in the "caravan," was marked or unmarked.

Nolan testified that as he was driving, he observed defendant standing in front of 4035 West Van Buren.

Defendant, who did not appear to be violating any laws, looked in the officers' direction and then fled. Nolan turned his vehicle southbound toward Congress Avenue, continuing to observe defendant, who ran southbound through a gangway and then through an alley. Nolan stated that defendant, who was carrying a white opaque bag under his arm, was cornered in the vicinity of 4036 West Congress when he "ran right towards us."

Nolan exited his car and stopped defendant. Without announcing his office or asking any questions, he conducted a protective pat-down search of defendant. Nolan testified that he could not see inside the bag defendant was carrying so he "squeezed" the bag and felt a very heavy, hard object 'that had a similar shape to a revolver or a gun." Believing the object to be a weapon, Nolan opened the bag and found a .38-caliber handgun containing five live rounds of ammunition. Nolan then placed defendant under arrest.[1]

Responding to the State's question as to why he "went to that location on that date and time," Nolan answered that it was "one of the areas in the 11th District that's high narcotics traffic." Nolan further testified that, based upon his experience in investigating areas in which narcotics were sold, it was common for there to be weapons "in the near vicinity" and he considered that fact as he approached "that specific scene." After hearing arguments by the parties, the trial court denied defendant's motion to suppress.

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[1] While no testimony was presented as to the precise time of defendant's arrest, the record contains Nolan's arrest report, which indicates a time of 12:15 p.m.

Generally, a trial court's ruling on a motion to suppress evidence is subject to reversal only if manifestly erroneous. *People v. Dilworth*, 169 Ill. 2d 195, 201 (1996). This clearly erroneous or manifestly erroneous test is based on the understanding that suppression motions usually raise mixed questions of law and fact. See *People v. Frazier*, 248 Ill. App. 3d 6, 12 (1993). However, where, as here, neither the facts nor the credibility of the witnesses is contested, the determination of whether there is reasonable suspicion warranting an investigatory stop is a legal question which a reviewing court may consider *de novo*. See *In re D.G.*, 144 Ill. 2d 404, 408-09 (1991); *People v. Foskey*, 136 Ill. 2d 66, 76 (1990); see also *People v. Besser*, 273 Ill. App. 3d 164, 167 (1995).

The fourth amendment to the United States Constitution guarantees the "right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures." U.S. Const., amend. IV. This provision applies to all seizures of the person, including seizures that involve only a brief detention short of traditional arrest. *United States v. Brignoni-Ponce*, 422 U.S. 873, 878, 45 L. Ed. 2d 607, 614, 95 S. Ct. 2574, 2578 (1975); *People v. Smithers*, 83 Ill. 2d 430, 433-34 (1980). In *Terry v. Ohio*, 392 U.S. 1, 20 L. Ed. 2d 889, 88 S. Ct. 1868 (1968), the United States Supreme Court held that the public's interest in effective law enforcement makes it reasonable to detain and question individuals under certain circumstances in which probable cause to arrest is lacking. However, in order to protect "the individual's right to personal security free from arbitrary interference by law officers" (*Brignoni-Ponce*, 422 U.S. at 878, 45 L. Ed. 2d at 615,

95 S. Ct at 2579), the *Terry* Court held that such limited investigatory stops are permissible only upon a reasonable suspicion based upon specific and articulable facts that the person has committed, or is about to commit, a crime. *Terry*, 392 U.S. at 21-22, 20 L. Ed. 2d at 906, 88 S. Ct. at 1880; *Smithers*, 83 Ill. 2d at 434.

This *Terry* standard has been codified in our Code of Criminal Procedure of 1963. *People v. Flowers*, 179 Ill. 2d 257, 262 (1997); *People v. Long*, 99 Ill. 2d 219, 228 (1983). Section 107-14 of the Code provides, in pertinent part: "A peace officer *** may stop any person in a public place for a reasonable period of time when the officer reasonably infers from the circumstances that the person is committing, is about to commit or has committed an offense ***." 725 ILCS 5/107-14 (West 1994). The same standard is applied in determining the propriety of an investigatory stop under article I, section 6, of the Illinois Constitution of 1970 (Ill. Const. 1970, art. I, §6). See *People v. Tisler*, 103 Ill. 2d 226, 242-43 (1984) (the protection against unreasonable searches and seizures under the Illinois Constitution is measured by the same standards as are used in defining the protections contained in the fourth amendment to the United States Constitution).

Turning to the case before us, defendant contended on direct appeal that the trial court erred in denying his motion to suppress because his presence in a high-crime area and flight from police were insufficient to justify his investigatory stop. The appellate court agreed, but found the record "simply too vague to support the inference that defendant was in a location with a high incidence of narcotics trafficking" and limited its holding accordingly. 287 Ill. App. 3d at 370-71. However, we believe Officer Nolan's uncontradicted and undisputed testimony, which was accepted by the trial court, was sufficient to establish that the incident occurred in a high-crime area. See *Ornelas v. United States*, 517 U.S. 690, 699, 134 L. Ed. 2d 911, 920, 116 S. Ct. 1657, 1663 (1996) (as a general matter determinations of reasonable suspicion and probable cause should be reviewed *de novo* on appeal, but reviewing court should take care both to review findings of fact only for clear error and to give due weight to inferences drawn from those facts by judges and local law enforcement officers). Thus, the issue presented by this appeal is whether an individual's flight upon the approach of a police vehicle patrolling a high-crime area is sufficient to justify an investigative stop of the person. Defendant contends that such flight alone is insufficient to create a reasonable suspicion of involvement in criminal conduct. We agree.

A majority of jurisdictions addressing this issue have held that flight alone is insufficient to justify a *Terry* stop. See, *e.g.*, *State v. Tucker*, 136 N.J. 158, 642 A.2d 401 (1994); *State v. Hicks*, 241 Neb. 357, 488 N.W.2d 359 (1992); *People v. Shabaz*, 424 Mich. 42, 378 N.W.2d 451 (1985); *People v. Aldridge*, 35 Cal. 3d 473, 674 P.2d 240, 198 Cal. Rptr. 538 (1984); *People v. Thomas*, 660 P.2d 1272 (Colo. 1983); *Watkins v. State*, 288 Md. 597, 420 A.2d 270 (1980). "Instead, courts require proof of some independently suspicious circumstance to corroborate the inference of a guilty conscience associated with flight at the sight of the police. [Citations.]" *Hicks*, 241 Neb. at 362-63, 488 N.W.2d at 363; see also *Tucker*, 136 N.J. at 169, 642 A.2d at 407 (for departure to take on the legal significance of flight, there must be some

circumstances present and unexplained which, in conjunction with the leaving, reasonably justify an inference that it was done with a consciousness of guilt and pursuant to an effort to avoid an accusation based on that guilt).

In *Hicks*, the Nebraska Supreme Court examined a number of these "location plus evasion" cases and, in a well-reasoned opinion, concluded:

> "[A]llowing flight alone to justify an investigative stop would undercut the very values *Terry* sought to safeguard. *Terry* is based in part upon the proposition that the right to freedom from arbitrary governmental intrusion is as valuable on the street as it is in the home. Thus, while a police officer does not violate the Fourth Amendment by approaching an individual in a public place and asking if the person will answer some questions, neither is the person under any obligation to answer. *Florida v. Royer*, 460 U.S. 491, 103 S. Ct. 1319, 75 L. Ed. 2d 229 (1983). The person may decline to listen to the questions at all and simply go on his or her way. *Id.* If the option to 'move on' is chosen, the person 'may not be detained even momentarily without reasonable, objective grounds for doing so; and his refusal to listen or answer does not, without more, furnish those grounds.' 460 U.S. at 498.
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> *** Flight upon approach of a police officer may simply reflect the exercise—'at top speed'—of the person's constitutional right to '"move on."' *Shabaz*, 424 Mich. at 63, 378 N.W.2d at 460. *Terry* and *Royer* stand for the proposition that exercise of this constitutional right may not

> itself provide the basis for more intrusive police activity.
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> ***
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> A prime concern underlying the *Terry* decision is protecting the right of law-abiding citizens to eschew interactions with the police. Authorizing the police to chase down and question all those who take flight upon their approach would undercut this important right and upset the balance struck in *Terry* between the individual's right to personal security and the public's interest in prevention of crime. We therefore join those jurisdictions holding that flight from a police officer is sufficient to justify an investigatory stop only when coupled with specific knowledge connecting the person to involvement in criminal conduct. [Citations.]" *Hicks*, 241 Neb. at 363-64, 488 N.W.2d at 363-64.

Although no Illinois court has specifically considered whether sudden flight from police in a high-crime area justifies a stop, we agree with the appellate court that "[i]n Illinois, neither a person's mere presence in an area where drugs are sold (*People v. Harper*, 237 Ill. App. 3d 202, 205, 603 N.E.2d 115 (1992)) nor sudden flight (*People v. Rivera*, 233 Ill. App. 3d 69, 77, 598 N.E.2d 423 (1992)) alone will justify a *Terry* stop." 287 Ill. App. 3d at 370; see also *People v. Fox*, 97 Ill. App. 3d 58 (1981) (driving away at approach of marked police vehicle not a justification for stop). Moreover, this court has recently emphasized the importance of protecting the freedom to engage in such harmless activities as "loafing, loitering, and nightwalking" and other personal liberties of citizens, including the right to travel, to locomotion, to freedom of movement, and to

associate with others. *City of Chicago v. Morales*, 177 Ill. 2d 440, 459-60 (1997), cert. granted, ___ U.S. ___, 140 L. Ed. 2d 664, 118 S. Ct. 15.

In *Morales*, we found that a City of Chicago ordinance which prohibited certain individuals from loitering in public places violated substantive due process because it unreasonably infringed on "the personal liberty of being able to freely walk the streets and associate with friends." *Morales*, 177 Ill. 2d at 460-61. We find similarly unreasonable the State's proposal, in the instant case, that every person observed in "sudden and unprovoked flight" from an officer may be stopped regardless of whether the surrounding circumstances indicate the person is involved in criminal activity. *Cf. People v. Holdman*, 73 Ill. 2d 213 (1978) (defendants' flight following officers' shining bright light into vehicle they reasonably believed to be associated with fugitive for whom they had warrant was indication of criminal activity requiring police pursuit). As defendant suggests, "[i]f the police cannot constitutionally force otherwise law-abiding citizens to move, the police cannot force those same citizens to stand still at the appearance of an officer." Therefore, because we agree with the majority of courts that view the unequivocal flight of a suspect upon seeing police as not alone indicative of criminal activity, we now examine the record herein to determine if there are corroborating circumstances sufficient to create the reasonable suspicion necessary for the stop of defendant.

The case before us is factually similar to *People v. Mamon*, 173 Mich. App. 429, 435 N.W.2d 12 (1988), *rev'd on other grounds*, 435 Mich. 1, 457 N.W.2d 623

(1990). There, two police officers were driving on routine patrol in a marked squad car through an area known for narcotics activity. As the officers approached the defendant, Mamon, standing on corner near a public phone, he took off running. The officers pursued the defendant on foot, noticing that he removed a case from his pocket and dropped it during the chase. The officers ultimately caught the defendant and retrieved the case, which contained cocaine. The trial court quashed an information charging the defendant with possession of a controlled substance, and the State appealed.

The Michigan appeals court affirmed the trial court's decision, first addressing the circumstances existing before the defendant began to run. Though the incident occurred in a high-crime neighborhood, the court determined that a person's presence in such an area cannot, by itself, provide the basis for an investigatory stop. In so doing, the court noted that the officers were not responding to a particular complaint of wrongdoing in the area and that the defendant made no furtive gestures prior to seeing the officers. Concluding that the officers lacked an articulable basis for stopping the defendant as he stood on the corner, the court turned to the significance of his flight upon their approach. Noting the ambiguous nature of flight as an indicator of guilt, the court held that the act of running at the sight of police patrolling a high-crime area did not provide the particularized grounds necessary to support a reasonable suspicion that criminal activity was afoot. *Mamon*, 173 Mich. App. at 435-38, 435 N.W.2d at 14-16.

Here, similar to *Mamon*, Officers Nolan and Harvey were "caravaning" with several other police vehicles

when the incident occurred. They were not responding to any call or report of suspicious activity in the area. Though Officer Nolan testified that that area of the 11th District is known for "high narcotics traffic," we agree with our appellate court's opinion in *Harper*, 237 Ill. App. 3d at 205-06, and the numerous decisions from other jurisdictions, holding that a person's presence in such an area by itself does not warrant a suspicion that that person is involved in crime. See *Brown v. Texas*, 443 U.S. 47, 61 L. Ed. 2d 357, 99 S. Ct. 2637 (1979); *Hicks*, 241 Neb. at 366, 488 N.W.2d at 365; *Shabaz*, 424 Mich. at 60, 378 N.W.2d at 459; see also *In re D.J.*, 532 A.2d 138, 143 (D.C. App. 1987) (innocent activities do not become sinister by the mere fact that they take place in a high-crime area).

It is also clear that defendant herein gave no outward indication of involvement in illicit activity prior to the approach of Officer Nolan's vehicle. Defendant was simply standing in front of a building when the officers drove by. As in *Mamon*, the officers lacked an articulable basis for suspecting defendant of involvement in criminal activity prior to the point at which he turned and ran.

In *Fox*, the Illinois case which most closely approximates the issue presented herein, the appellate court foreshadowed our concerns, stating:

> "At the time of the stop, the investigating officers were aware that 'partying and littering' had recently occurred in the *** area and also that the vehicle in which the defendant was riding as a passenger exited the area at a speed which one officer believed to be unreasonable upon the approach of a squad car. But, the officers testifying on behalf of the State did not relate that *any additional suspicious or unusual activities* that would have alerted the police to the possibility of criminality were carried on by the occupants of the automobile. ***
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> ***
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> In short, the evidence adduced in this case does not support the State's contention that the police were aware of specific and articulable facts to justify the stop here. Rather, the evidence suggests that the police officers were operating under a suspicion or hunch that the vehicle contained someone who had committed or was about to commit a crime." (Emphasis added.) *Fox*, 97 Ill. App. 3d at 63-64.

Here, as in *Fox*, in the absence of circumstances corroborating the conclusion that defendant was involved in criminal activity, Officer Nolan's testimony reveals nothing more than a hunch.

As our brethren on the Supreme Court of Colorado have so aptly stated:

> "We are aware that the weighty social objective of crime prevention might well be served by permitting stops and detentions without any requirement of a reasonable suspicion that criminal activity has occurred or is about to take place. In the absence of specific and articulable facts supporting the reasonable suspicion, however, 'the balance between the public interest and [defendant's] right to personal security and privacy tilts in favor of freedom from police interference.' *Brown v. Texas*, [443 U.S.] at 52, 99 S. Ct. at 2641, 61 L. Ed. 2d at 363." *Thomas*, 660 P.2d at 1277.

Where, as here, the police stop is not based upon objective criteria pointing to a reasonable suspicion of criminal activity, "the risk of arbitrary and abusive police practices exceeds tolerable limits." *Brown v. Texas*, 443 U.S. at 52, 61 L. Ed. 2d at 363, 99 S. Ct. at 2641.

Therefore, because Officer Nolan was not able to point to specific facts corroborating the inference of guilt gleaned from defendant's flight, his stop and subsequent arrest of defendant were constitutionally infirm. U.S. Const., amend. IV; Ill. Const 1970, art. I, §6. The appellate court, therefore, properly reversed the trial court's denial of defendant's motion to suppress evidence. The weapon that was the basis for defendant's conviction should have been suppressed as the product of the unconstitutional seizure of his person. *Wong Sun v. United States*, 371 U.S. 471, 488, 9 L.Ed. 2d 441, 455, 83 S.Ct. 407, 417 (1963).

For the foregoing reasons, the judgment of the appellate court, reversing the judgment of the circuit court, is affirmed.

Appellate court judgment affirmed.

APPENDIX B

Opinion of The Appellate Court of Illinois
First District, Second Division
No. 1-96-0094, Filed March 18, 1997

PEOPLE OF THE STATE OF ILLINOIS,	)	Appeal from the Circuit Court of Cook County
Plaintiff-Appellee,	)	No. 95 CR 26952
v.	)	The Honorable Fred Suria, Judge Presiding.
SAM WARDLOW,	)	
Defendant-Appellant.	)	

JUSTICE DiVITO delivered the opinion of the court:

Following a bench trial, defendant Sam Wardlow was found guilty of unlawful use of a weapon by a felon and was sentenced to two years' imprisonment. The sole issue in this appeal is whether the circuit court erred in denying defendant's motion to suppress the gun that was seized from him during an investigatory stop. For the reasons that follow, we conclude that defendant's motion to suppress should have been granted and we reverse his conviction.

At the hearing on defendant's motion to suppress, Officer Timothy Nolan testified that on September 9, 1995, he and his partner, Officer Harvey, were assigned to the special operations section of the Chicago police department. They were among eight officers in four cars who were driving eastbound on West Van Buren. Officer Nolan's car was last in the line of vehicles driving in the area. Although Officer Nolan could not

recall whether his car was marked, he and his partner were in uniform. There was no evidence concerning whether any of the other cars were marked or concerning the clothing of the other officers.

The cars were "caravaning" eastbound down Van Buren, when Officer Nolan observed defendant, who was not violating any laws, standing near the front of 4035 West Van Buren Street. Defendant looked in the officers' direction, then fled. Holding a white bag under his arm, he ran through a gangway and then through an alley. Officer Nolan drove south, observing defendant as he ran. Near 4036 West Congress, defendant ran towards him.

Officer Nolan exited his car and stopped defendant. Without announcing his office or asking any questions, he conducted a protective pat-down search of defendant. He could not see inside the plastic bag that defendant was carrying. He patted the outside of the bag and "felt a hard object that had a similar shape to a revolver or a gun." Officer Nolan believed the object, which was very heavy, to be a weapon. He looked inside the bag and found a .38-caliber handgun containing five live rounds of ammunition. He then placed defendant under arrest.

Officer Nolan testified that he and the other officers had gone to the area because it was "one of the areas in the 11th District that's high narcotics traffic." Based upon his experience with investigation of areas in which narcotics are sold, Officer Nolan knew that it was common to find weapons in the vicinity of such areas.

The police report indicated that defendant, who was 44 years old, was arrested at 12:15 p.m.

The circuit court denied the motion to suppress. A stipulated bench trial followed, and defendant was found guilty of unlawful use of a weapon by a felon and was sentenced to a two-year term of imprisonment.

In this appeal, defendant contends that the circuit court erred in denying his motion to suppress because his presence in a high crime area and flight from the police officers were insufficient to justify his investigatory stop. We note that although no Illinois court has considered whether sudden flight from police officers in a high crime area justifies a stop, other jurisdictions are divided on the question. Compare *Harris v. State*, 205 Ga. App. 813, 423 S.E.2d 723 (1992), and *State v. White*, 660 So. 2d 515 (La. Ct. App. 1995) (flight from police officers in high crime area justifies investigatory stop), with *People v. Holmes*, 81 N.Y.2d 1056, 619 N.E.2d 396, 601 N.Y.S.2d 459 (1993), *affirmed*, 89 N.Y.2d 838 (1996), *Hopkins v. State*, 661 So. 2d 774 (Ala. Crim. App. 1994), *Britt v. State*, 673 So. 2d 934 (Fla. App. 1996), and *State v. Hicks*, 241 Neb. 357, 488 N.W.2d 359 (1992) (flight from police officers in high crime area does not justify stop).

Where, as here, there is no challenge to the facts or the credibility of the witnesses, we review a motion to suppress *de novo*. *People v. Foskey*, 136 Ill. 2d 66, 76, 554 N.E.2d 192 (1990); *Ornelas v. United States*, 517 U.S. ___, ___, 134 L. Ed. 2d 911, 920, 116 S. Ct. 1657, 1663 (1996).

Under *Terry v. Ohio*, 392 U.S. 1, 20 L. Ed. 2d 889, 88 S. Ct. 1868 (1968) (codified at 725 ILCS 5/107-14 (West

1994)), a police officer may stop and detain a person for temporary questioning if the officer reasonably infers from the situation that the person is committing, is about to commit, or has committed a crime. *Terry*, 392 U.S. at 22, 20 L. Ed. 2d at 906-07, 88 S. Ct. at 1880. To justify an investigatory stop, the police officer must be able to point to specific and articulable facts that reasonably warrant the intrusion. *Terry*, 392 U.S. at 21, 20 L. Ed. 2d at 906, 88 S. Ct. at 1880. In determining whether a stop is reasonable, the court employs an objective standard: would an officer of reasonable caution, knowing the facts available at the time of the stop, believe the action was appropriate? *People v. Rivera*, 272 Ill. App. 3d 502, 504-05, 650 N.E.2d 1084 (1995), *appeal denied*, 164 Ill. 2d 577, 660 N.E.2d 1277 (1995).

In Illinois, neither a person's mere presence in an area where drugs are sold (*People v. Harper*, 237 Ill. App. 3d 202, 205, 603 N.E.2d 115 (1992)) nor sudden flight (*People v. Rivera*, 233 Ill. App. 3d 69, 77, 598 N.E.2d 423 (1992)) alone will justify a *Terry* stop. Past criminal activity in an area (*People v. Hunt*, 188 Ill. App. 3d 359, 362, 544 N.E.2d 118 (1989), *appeal denied*, 128 Ill. 2d 668, 548 N.E.2d 1074 (1989)) and flight (*Rivera*, 233 Ill. App. 3d at 77), however, are relevant factors to be considered in determining whether circumstances justify an investigatory stop.

For example, in *People v. Rivera*, 233 Ill. App. 3d 69, 76-77, 598 N.E.2d 423 (1992), police officers entered the defendant's bar, having received information that cocaine was stored in the basement and the defendant was involved in its sale and distribution. According to the testimony of the police officers, the defendant ap-

peared frightened and fled when they entered the bar. *Rivera*, 233 Ill. App. 3d at 77. The court found that the flight of defendant, combined with the information known to the officers, provided the requisite reasonable suspicion. *Rivera*, 233 Ill. App. 3d at 77.

From the record before us, we cannot discern the precise location of the area known by the officers to have a high incidence of narcotics trafficking. After he testified that he noticed defendant at 4035 West Van Buren, Officer Nolan was asked why he went to that area. He responded that it was one of the areas in the 11th District that had "high narcotics traffic." His testimony indicates only that the officers were headed somewhere in the general area. There was no evidence that the officers were investigating the specific area where defendant had been standing or that any of the police cars had stopped at that location or that defendant had any basis for believing that police were interested in his activity.

Officer Nolan testified that he was "caravaning" down West Van Buren when he noticed defendant. He did not testify that the officers were targeting 4035 West Van Buren because it was known to be a location where drugs were sold. From the evidence elicited at the hearing on the motion to suppress, it appears that the officers were simply driving by, on their way to some unidentified location, when they noticed defendant standing at 4035 West Van Buren. The record here is simply too vague to support the inference that defendant was in a location with a high incidence of narcotics trafficking or, for that matter, that defendant's flight was related to his expectation of police focus on him.

Because we find no support in the record for the contention that defendant was in a high crime location, we are left only with the fact of his sudden flight from an area past which police officers were driving. That circumstance alone does not satisfy the requirements for a lawful investigatory stop. *Rivera*, 233 Ill. App. 3d at 77. Accordingly, the circuit court erred in denying defendant's motion to suppress.

We emphasize the limited nature of our holding. Because we recognize the importance of the police interest in investigating crime, we do not hold that the presence of a suspect in a high crime location, together with his subsequent flight from police, is never grounds for a *Terry* stop. Certainly, a "high crime area is a place in which the character of the area gives color to conduct which might not otherwise raise the suspicion of an officer." *White*, 660 So. 2d at 519. To pass constitutional muster, however, the high crime area should be a sufficiently localized and identifiable location. This limitation is necessary to "assure that an individual's reasonable expectation of privacy is not subject to arbitrary invasions solely at the unfettered discretion of officers in the field," simply because he or she happens to live in a neighborhood where crime is prevalent. *Brown v. Texas*, 443 U.S. 47, 51, 61 L. Ed. 2d 357, 362, 99 S. Ct. 2637, 2640 (1979).

Accordingly, the weapon that was the basis for defendant's conviction should have been suppressed because it was discovered as a result of an unjustified investigative stop. *Wong Sun v. United States*, 371 U.S. 471, 488, 9 L. Ed. 2d 441, 455, 83 S. Ct. 407, 417 (1963). Rather than remanding, we reverse defendant's

conviction outright because the State will not be able to prevail without the recovered evidence. *People v. Evans*, 259 Ill. App. 3d 650, 659, 631 N.E.2d 872 (1994).

The judgment of the circuit court is reversed.

Reversed.

RAKOWSKI and McNULTY, JJ., concur.